

NEW OR TRANSFER LIQUOR LICENSE OR PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY

Customer #:

Trf from:

Reviewer: Initials

Date

Agent:

Chief:

/ /

/ /

To be completed by City/County ClerkLocal License #: R 398428

License

Fees Annual Fee: \$ 1500.00Date filed with clerk: 1 / 28 / 22

Prorated Fee: \$ _____

Advertising Dates: (2 Weeks)

Transfer Fee: \$ _____

3/31/22 & 4/7/22Publishing Fee: \$ 100.00Hearing Date: 4 / 11 / 22Publishing Fee Direct Billed to Applicant: ☐

License Term:

Month

Day

Year

Through

Month

Day

Year

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

Applicant:

Capitol Cuisine LLC dba Ike's Bar & Grill

Trade/Business Name (dba):

Ike's Bar & Grill

Building to be licensed/Building Address:

122 W 6th St

Number & Street

Cheyenne

City

WY

State

82009

Zip

County

Local Mailing Address:

7210 Rodeo Ct

Number & Street or P.O. Box

Cheyenne

City

WY

State

82009

Zip

Local Business Telephone Number: (307) 829-7887

Fax Number: ()

Business E-Mail Address: _____

FILING FOR☒ NEW LICENSE☐ TRANSFER OF LOCATION☐ TRANSFER OWNERSHIP

FORMERLY HELD BY: _____

FILING IN (CHOOSE ONLY ONE)☐ CITY OF: Cheyenne☐ COUNTY OF: Laramie☐ ASSIGNMENT LETTER ATTACHED**FILING AS (CHOOSE ONLY ONE)**☐ INDIVIDUAL☐ PARTNERSHIP☐ LP/LLP☒ LLC☐ CORPORATION☐ LTD PARTNERSHIP☐ ORGANIZATION☐ OTHER _____**TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)****RETAIL LIQUOR LICENSE**☒ ON-PREMISE ONLY (BAR)☐ OFF-PREMISE ONLY (PACKAGE STORE)☐ COMBINATION ON/OFF PREMISE (BOTH BAR & PACKAGE STORE)☐ RESTAURANT LIQUOR LICENSE☐ RESORT LIQUOR LICENSE☐ BAR AND GRILL**LIMITED RETAIL (CLUB)**☐ VETERANS CLUB☐ FRATERNAL CLUB☐ GOLF CLUB☐ SOCIAL CLUB☐ MICROBREWERY☐ WINERY☐ DISTILLERY SATELLITE☐ WINERY SATELLITE☐ COUNTY RETAIL/SPECIAL MALT BEVERAGE PERMIT**SPECIAL DESIGNATIONS**☐ CONVENTION FACILITY☐ CIVIC CENTER/EVENT CENTER/ PUBLIC AUDITORIUM☐ GOLF CLUB☐ GUEST RANCH☐ RESORTTo Assist the Liquor Division with scheduling inspections: **OPERATIONAL STATUS**☒ FULL TIME (e.g. Jan through Dec)

(specify months of operation)

from Jan to Dec☐ SEASONAL/PART-TIME

DAYS OF WEEK (e.g. Mon through Sat)

from Mon to Sun☐ NON-OPERATIONAL/PARKED

HOURS OF OPERATION (e.g. 10a - 2a)

from 11 pm to 2:00 am

ALL APPLICANTS MUST COMPLETE QUESTIONS 1- 4

1. BUILDING OWNERSHIP: Does the applicant? W.S. 12-4-103(a)(iii)

- (a) OWN the licensed building?

☐ YES (own)
- (b) LEASE the licensed building? (Lease must be through the term of the liquor license)

☒ YES (lease)

If Yes, please submit a copy of the lease and indicate:

- (i) When the lease expires, located on page_____paragraph_____of lease.
- (ii) Where the Sales provision for alcoholic or malt beverages is located, on page_____paragraph_____of lease.
(MUST contain a provision for SALE OF ALCOHOLIC or MALT BEVERAGES.)

2. To operate your liquor business, have you assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license and the licensed building? W.S. 12-4-601(b)

☐ YES ☒ NO

3. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403

- (a) Hold any interest in the license applied for?

☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business?

☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs?

☐ YES ☒ NO
- (d) If you answered YES to any of the above, explain fully and submit any documents in connection there within:

4. Does the applicant have any interest or intent to acquire an interest in any other liquor license issued by this licensing authority? W.S. 12-4-103(b)

☐ YES ☐ NO

If "YES", explain: _____

5. BAR AND GRILL LICENSE OR RESTAURANT LICENSE:

Have you submitted a valid food service permit or application? W.S. 12-4-413(a)

☐ YES ☐ NO

6. RESORT LICENSE:

Does the resort complex:

- (a) Have an actual valuation of at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i)

☐ YES ☐ NO
- (b) Include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii)

☐ YES ☐ NO
- (c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii)

☐ YES ☐ NO
- (d) If no on question (c), have a ski resort facility open to the general public in which you have committed or expended not less than 10 million dollars (\$10,000,000.00)? W.S. 12-4-401(b)(iv)

☐ YES ☐ NO
- (e) Are you contracting/leasing the food and beverage services? W.S. 12-4-403(b)

1. If Yes, have you submitted a copy of the food and beverage contract/lease?

☐ YES ☐ NO

7. MICROBREWERY LICENSE:

Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii)

☐ YES ☐ NO

- (a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT
☐ BAR AND GRILL ☐ WINERY

- (b) Do you self distribute your products? W.S. 12-2-201(a)

☐ YES ☐ NO
- (Requires wholesale malt beverage license with the Liquor Division)

8. WINERY LICENSE:

Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii)

☐ YES ☐ NO

- (a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT
☐ BAR AND GRILL ☐ MICROBREWERY

9. LIMITED RETAIL (CLUB) LICENSE:

FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)

- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

10. LIMITED RETAIL (CLUB) LICENSE:

VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):

- (a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

11. LIMITED RETAIL (CLUB) LICENSE:

GOLF CLUBS W.S. 12-1-101(a)(iii)(D)/W.S. 12-4-301(e):

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO
- (c) Are you a political subdivision of the state that owns, maintains, or operates a golf course? ☐ YES ☐ NO
1. Are you contracting/leasing the food and beverage services? W.S. 12-5-201(g) ☐ YES ☐ NO
2. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

12. LIMITED RETAIL (CLUB) LICENSE:

SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E)/W.S. 12-4-301(b):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as Recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with this application? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition Attached) ☐ YES ☐ NO

13. If applicant is filing as an Individual, Partnership or Club: W.S. 12-4-102(a)(ii) & (iii)

Each individual, partner or club officer must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip <i>DO NOT LIST PO BOXES</i>	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

14. If the applicant is a **Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership:** W.S. 12-4-102(a)(iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, **and every officer, and every director** must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip <i>DO NOT LIST PO BOXES</i>	Residence Phone Number	No. of Years in Corp or LLC	% of Corpora te Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
Brian Eicholtz	8-14-78	7210 Rodeo Ct Cheyenne WY 82009	307 760-9381	4	100	YES ☐ NO ☒	YES ☒ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application)

REQUIRED ATTACHMENTS:

- ☐ A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102(a)(vi).
- ☐ Attach any lease agreements (especially for resort/political subdivisions leasing out food & beverage services) W.S. 12-4-103 (a)(iii)/W.S. 12-4-403(b)/W.S. 12-4-301(e).
- ☐ If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601(b).

OATH OR VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

**Under penalty of perjury, and the possible revocation or cancellation of the license,
I swear the above stated facts, are true and accurate.**

STATE OF WYOMING)

COUNTY OF Laramie) SS.

Signed and sworn to before me on this 28 day of Jan, 2022 that the facts alleged in the foregoing instrument are true by the following:

1)	<u>Brian Eicholtz</u> (Signature)	<u>Brian Eicholtz</u> (Printed Name)	<u>owner</u> Title
2)	 (Signature)	 (Printed Name)	 Title
3)	 (Signature)	 (Printed Name)	 Title
4)	 (Signature)	 (Printed Name)	 Title
5)	 (Signature)	 (Printed Name)	 Title
6)	 (Signature)	 (Printed Name)	 Title



Witness my hand and official seal:

Wendy J. Kinkade
Signature of Notary Public
expires 3/27/22

COMMERCIAL LEASE

This lease is made between JKB Inc. dba WyCO Wind and Solar Inc. herein called Lessor and Capitol Cuisine LLC dba Ike's Bar & Grill, a Wyoming Corporation herein called Lessee.

Lessee hereby offers to lease from Lessor the premises described as LOTS; 12, 13, 14 & 15, BLOCK 627 (SOUTH CHEYENNE) also known as 122 W 6th Street, Cheyenne, WY 82007 upon the following TERMS and CONDITIONS.

1. Term and Rent.

Lessor hereby leases the above premises to the Lessee for a term of 24 months, commencing on September 1, 2020 and terminating on August 30, 2022.

Lessee shall pay Lessor the sum of \$2,000.00 (Two Thousand Dollars) per Month beginning October 1, 2020. Said rental sum shall not be due and payable however until such time as Lessee opens but no later than July 1, 2021. Said rent shall be due and payable by the 1st of every month after that. Beginning September 1, 2021, said rent shall increase to \$2,400.00 for the remaining 12 month term. All rental payments shall be made to Lessor, at the address of: ATTN: Donna Marion, PO Box 3023, Cheyenne, Wyoming 82003. (307) 631-6855.

2. Use. Lessee shall use and occupy the premise for the purpose of Operating a Bar and Restaurant and for the sale of alcoholic/malt beverages on premise and for no other purpose.

3. Care and Maintenance of Premises. Lessee acknowledges that the premises are in good order and repair, unless otherwise indicated herein. Lessee shall, at his own expense and at all times, maintain the premises in good and safe condition, including plate glass, and shall surrender the same at termination hereof, in as good condition as received, normal wear and tear excepted. Lessee shall be responsible for all repairs required, excepting the roof, heat/air system, hot water heater, exterior walls and structural foundations.

4. Alterations. Lessee shall not, without first obtaining the written consent of Lessor, make any alterations, additions, or improvements, in, to or about the premises.

5. Ordinances and Statutes. Lessee shall comply with all statutes, ordinances and requirements of all municipal, state and federal authorities now in force, or which may hereafter be in force, pertaining to the premises, occasioned by or affecting the use thereof by Lessee.

6. Assignment and Subletting. Lessee shall not assign this lease.

7. Utilities. All applications and connections for necessary utility services on the demised premises shall be made in the name of Lessee only, and Lessee shall be solely liable for

which the demised premises may be situated is destroyed to an extent of not less than one-third of the replacement cost, Lessor may elect to terminate this lease whether the demised premises be injured or not. A total destruction of the building in which the premises may be situated shall terminate this lease.

14. Lessor's Remedies on Default. If Lessee defaults in the payment of rent, or any additional rent, or defaults in the performance of any of the other covenants or conditions hereof, Lessor may give Lessee notice of such default and if Lessee does not cure any such default within 10 days, after the giving of such notice (or if such other default is of such nature that it cannot be completely cured within such period, if Lessee does not commence such curing within 10 days and thereafter proceed with reasonable diligence and in good faith to cure such default), then Lessor may terminate this lease on not less than 10 days' notice to Lessee. On the date specified in such notice the term of this lease shall terminate, and Lessee shall then quit and surrender the premises to Lessor, but Lessee shall remain liable as hereinafter provided. if this lease shall have been so terminated by Lessor, Lessor may at any time thereafter resume possession of the premises by any lawful means and remove Lessee or other occupants and their effects. No failure to enforce any term shall be deemed a waiver.

15. Security Deposit. Lessee shall deposit with Lessor on the signing of this lease the sum of (None) (\$0.00) as security deposit for the performance of Lessee's obligations under this lease, including without limitation the surrender of possession of the premises to Lessor as herein provided.

16. Attorney's Fees. In case suit should be brought for recovery of the premises, or for any sum due hereunder, or because of any act which may arise out of the possession of the premises, by either party, the prevailing party shall be entitled to all costs incurred in connection with such action, including reasonable attorney's fee.

17. Notices. Any notice which either party may, or is required to give, shall be given mailing same, postage prepaid, to

Lessor:

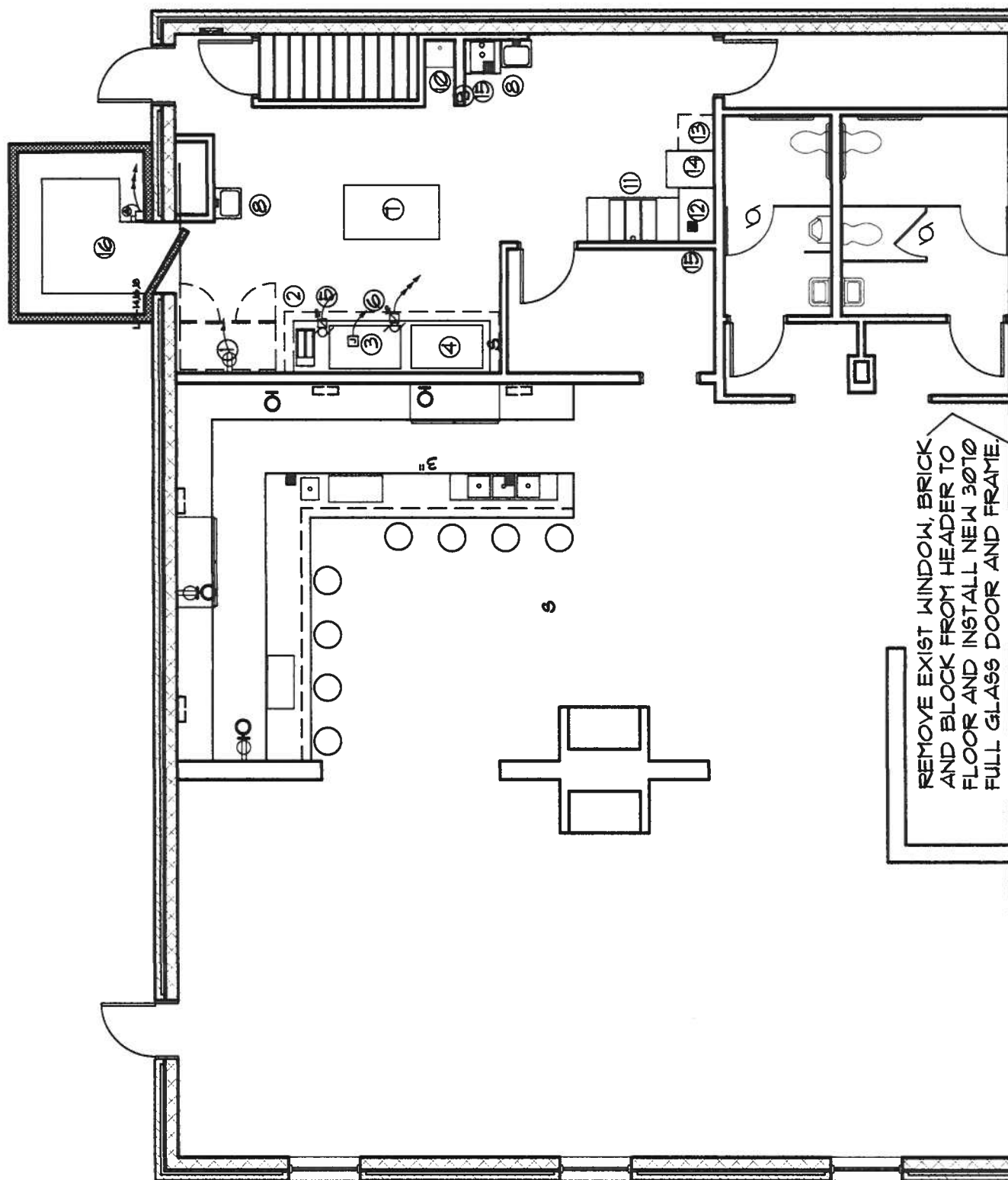
JKB Inc. dba WyCO Wind and Solar Inc., 115 W 6th Street, Cheyenne,
Wyoming 82007. 307-286-7437.

Lessee:

Capitol Cuisine dba Ike's Bar & Grill, 122 W 6th Street, Cheyenne,
Wyoming 82007. 307-760-9381.

18. Heirs, Assigns, Successors. This lease is binding upon and inures to the benefit of the heirs, successors in interest to the parties.

19. No failure of the Lessor to enforce any provision herein stated shall be deemed a



Capitol Cuisine LLC in conjunction with Brian Eicholtz will insure each abled employee of Ike's Bar & Grill will be properly trained with Tips Training

Capitol Cuisine LLC
Brian Eicholtz
B Eichey

STATE OF WYOMING * SECRETARY OF STATE
EDWARD A. BUCHANAN
BUSINESS DIVISION

Herschler Bldg East, Ste.100 & 101, Cheyenne, WY 82002-0020
Phone 307-777-7311
Website: <https://sos.wyo.gov> · Email: business@wyo.gov

Filing Information



Please note that this form CANNOT be submitted in place of your Annual Report.

Name	Capitol Cuisine LLC		
Filing ID	2018-000809591		
Type	Limited Liability Company	Status	Active

General Information

Old Name		Sub Status	Current
Fictitious Name		Standing - Tax	Good
		Standing - RA	Good
Sub Type		Standing - Other	Good
Formed in	Wyoming	Filing Date	06/25/2018 6:31 PM
Term of Duration	Perpetual	Delayed Effective Date	07/01/2018
		Inactive Date	

Principal Address
1720 Capitol Ave
Cheyenne, WY 82001

Mailing Address
1720 Capitol Ave
Cheyenne, WY 82001

Registered Agent Address
Brian Scott Eicholtz
7210 Rodeo Ct
Cheyenne, WY 82009

Parties

Type	Name / Organization / Address
Organizer	Brian Eicholtz 7210 Rodeo Ct, Cheyenne, WY 82009

Notes

Date	Recorded By	Note
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Filing Information



Please note that this form CANNOT be submitted in place of your Annual Report.

Name	Capitol Cuisine LLC		
Filing ID	2018-000809591		
Type	Limited Liability Company	Status	Active

Most Recent Annual Report Information

Type	Original	AR Year	2020
License Tax	\$50.00	AR Exempt	N
AR Date	9/8/2020 6:06 AM	AR ID	05910875
Web Filed	Y		

Officers / Directors

Type	Name / Organization / Address
Principal Address	Mailing Address
1720 Capitol Ave Cheyenne, WY 82001	1720 Capitol Ave Cheyenne, WY 82001

Annual Report History

Num	Status	Date	Year	Tax
04954843	Original	08/28/2019	2019	\$50.00
05910875	Original	09/08/2020	2020	\$50.00

Amendment History

ID	Description	Date
2020-002933571	Reinstatement - Tax	09/08/2020
	Filing Status Changed From: Inactive - Administratively Dissolved (Tax) To: Active	
2020-002933291	Dissolution / Revocation - Tax	09/08/2020
	Filing Status Changed From: Active To: Inactive - Administratively Dissolved (Tax)	
	Inactive Date Changed From: No Value To: 09/08/2020	
2020-002881937	Delinquency Notice - Tax	07/02/2020
2019-002582382	Delinquency Notice - Tax	07/02/2019
See Filing ID	Initial Filing	06/25/2018 effective 07/01/2018

Parcel ID: R00002203

PIDN: 13660524400600

Tax ID: 11001062700122 Property Taxes

Tax District: 0151

Owner(s): JKB INC

Address: 115 W 6TH ST
 CHEYENNE, WY 82007

Address: 122 W 6TH ST

Deed: 2687 WD 1025, 08/05/2020

Location: LOTS 12,13,14 & 15, BLOCK 627 (SOUTH CHEYENNE)

Assessed Value: \$ 252,963 (\$ 65,619 Land + \$ 187,344 Improvements)

Unimproved Value: \$ 24,031

Characteristics shown below may not be reflected in the values shown

Square Feet							Class	
12,672							Commercial - Improved Land - All Inclusive	
12,672							Total	
Stories	Sq Ft	Exterior	Roof	Cover	Year Built	Sketch(s)	Photo(s)	
1.0	3135	Masonry			1977	#1	#1 #2	
wamp	1							
Concrete								

2101 O'Neil Ave

Cheyenne, WY 82001

Esteemed members of Cheyenne City Council and Mayor Collins,

My name is Brian Eicholtz. I represent Capitol Cuisine LLC and am pleased to come before you with a proposal of my application for a Retail License to be used at Ike's Bar & Grill at 122 W 6th St, Cheyenne WY 82007. My intent is to provide alcoholic beverages with amazing food in a safe and entertaining environment. Adding a sorely needed establishment to the South Side of Cheyenne for residents to enjoy a late night drink at a friendly and safe environment.

I was born and raised in Cheyenne WY on a glorious August evening in 1978. Graduated from Cheyenne Central in 1997. (Don't hold that against me Mr. Mayor). Lettering in Basketball and Soccer. Sticking to my home roots I attended the University of Wyoming. After graduation I returned with my family and was the Bar Manager of Jacksons All American Sports Bar & Grill here in Cheyenne. 1 year later I was given the promotion of Area Coach to South Eastern Wyoming Pizza Hut. After 7 years on the job, I decided I had had enough of the cooperate life and decided on a personal venture of Capitol Cuisine located at 1720 Capitol Ave here in Cheyenne WY. After 3 years of supporting and loving downtown Cheyenne I was graced the opportunity to renovate and create my true passion. Ike's Bar & Grill was born. Since October of 2020 I have invested countless hours and finances to create my dream. New flooring, bathrooms, paint and countless other modifications. We have also been approved to add an outdoor dining patio. I look forward to many more years as both a resident of Cheyenne and a proud member of Downtown Cheyenne.

I am the proud parent of 2 children and 6 stepchildren. With our split family household, we see All parts of Cheyenne. My wife Kaylan is not only the glue of our family but finds time to help at the restaurant and keep up with her career as the Events and Marketing Director of the Cheyenne Depot Museum. Kaylan is also a graduate of both Cheyenne Central and the University of Wyoming. Poke pride runs deep in our household.

I appreciate everyone's time as you entertain my passion. I cannot imagine a more thankless job you all seem to do with ease. I know how extremely busy every single one of you are. Thank you for all you do for our city and community.
